

SUPERIOR COURT OF CALIFORNIA
COUNTY OF MERCED

Civil Law and Motion Tentative Rulings
Hon. Mark Bacciarini
Courtroom 10

627 W. 21st Street, Merced

Tuesday, September 22, 2026
8:15 a.m.

The following tentative rulings shall become the ruling of the court unless a party gives notice of intention to appear as follows:

1. You must call (209) 725-4240 to notify the court of your intent to appear.
2. You must give notice to all other parties before 4:00 p.m. of your intent to appear.

Per California Rules of Court, rule 3.1308(a)(1), failure to do both items 1 and 2 will result in no oral argument. *Note:* Notifying CourtCall (the court's telephonic appearance provider) of your intent to appear does not satisfy the requirement of notifying the court.

Case No.	Title / Description
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25CV-07244	Judith Zolna, et al. vs 3169 M Street, LLC, et al.
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Motion for Trial Preference Pursuant to CCP Section 36(A)

The motion for trial preference is DENIED WITHOUT PREJUDICE.

As an initial matter, the procedural issues raised by Defendant appear to have been addressed by Plaintiff by way of Counsel's supplemental declaration filed on September 15, 2026.

As to the substance of the motion, insufficient evidence has been provided for the court to determine if the health of Plaintiff is such that a trial preference is necessary. (See Code Civ. Proc. § 36, subd. (a)(2).) There is no evidence attached to Counsel's declaration that supports the contention regarding Plaintiff's health or diagnosis. Counsel's statement on information and belief is insufficient.

Accordingly, the motion is denied without prejudice.

SUPERIOR COURT OF CALIFORNIA
COUNTY OF MERCED

Civil Law and Motion Tentative Rulings
Hon. Mark Bacciarini
Courtroom 10

627 W. 21st Street, Merced

Tuesday, September 22, 2026
1:30 p.m.

The following tentative rulings shall become the ruling of the court unless a party gives notice of intention to appear as follows:

1. You must call (209) 725-4240 to notify the court of your intent to appear.
2. You must give notice to all other parties before 4:00 p.m. of your intent to appear.

Per California Rules of Court, rule 3.1308(a)(1), failure to do both items 1 and 2 will result in no oral argument. *Note:* Notifying CourtCall (the court's telephonic appearance provider) of your intent to appear does not satisfy the requirement of notifying the court.

Case No.	Title / Description
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22CV-03409	Agustin Garcia Hernandez, et al. vs Dan Erickson, et al.
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On the Court's Own Motion, the parties are ordered to attend a Mandatory Settlement Conference on October 12, 2026, at 9:00 a.m. in Courtroom 10.

The plethora of motions discussed below seem to represent a disproportionately excessive litigation effort for a single car v. cattle collision alleging primarily soft tissue injury, currently set for jury trial in Merced County, a county with an 18.4% poverty rate, and with a jury pool primarily comprising blue collar hourly employed workers, many working in agriculture and ranching and many who drive the road on which the accident occurred on a daily basis. When evaluating settlement offers, the parties should consider that if the last known location of the bull involved in the collision, a matter that should be peculiarly within knowledge of Defendants, is not established with some degree of certainty, then Plaintiffs may be entitled to CACI Jury Instruction No. 203 instructing the jury that: "You may consider the ability of each party to provide evidence. If a party provided weaker evidence when it could have provided stronger evidence, you may distrust the weaker evidence." As discussed in connection with the motions below, Defendants cannot simultaneously seek to limit discovery of the last known whereabouts of the bull in question while also seeking to limit discovery of the condition of fencing in locations where the bull may have been kept.